

commence tomorrow, September 9, 2026 at 8:45 a.m in Department 64. No appearances are necessary on today's calendar.

MCCAIN VS. EST OF RICHARD CARL RIPLEY, ET AL.

CASE NUMBER: 25CV-0207239

Tentative Ruling on Order to Show Cause Re Sanctions: An Order to Show Cause Re: Sanctions ("OSC") issued on August 12, 2026, to Plaintiff for failure to appear at the hearing on the Order to Show Cause re Dismissal on July 6, 2026. No response to the OSC has been filed. Sanctions will be imposed in the amount of \$250. The clerk is instructed to prepare a separate Order of Sanctions. The Court confirms today's review hearing set for 9:00 a.m.

PRESIDIO, ET AL. VS. FCA US LLC, ET AL.

CASE NUMBER: 25CV-0209055

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions ("OSC") issued on July 15, 2026, to Plaintiffs and Counsel, for failure to timely serve pleadings. No response to the OSC has been filed. However, the Court notes that proper proof of service of summons has been filed. The OSC is **DISCHARGED**. Sanctions will not be imposed. This matter is set for review regarding status of responsive pleadings on **Monday, October 12, 2026 at 9:00 a.m. in Department 64.** No appearances are necessary on today's calendar.

IN RE: RADIE

CASE NUMBER: 26CV-0210405

Tentative Ruling on Petition for Change of Name: Petitioner Amber Marie Radie seeks to change her minor daughter's name. Proper proof of service of the father is on file. On August 13, 2026, the minor's father Adam Mattson filed a Declaration, stating his consent to the name change. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated, and the file closed upon the processing of the Decree Changing Name.

ROCKY TOP RENTALS, LLC VS. VAN NORMAN ERICKSON, ET AL.

CASE NUMBER: 25CVG-02320

Tentative Ruling on Order to Show Cause Re Sanctions: An Order to Show Cause Re: Sanctions ("OSC") issued on August 12, 2026, to Plaintiff and Counsel for failure to serve and timely prosecute. This action was filed November 6, 2025 and is still not at issue. No proof of service of summons is on file for Defendant Eli Van Norman Erickson or Mark Ludwig. No response to the OSC has been filed. Sanctions will be imposed in the amount of \$250. The clerk is instructed to prepare a separate Order of Sanctions. The Court confirms today's review hearing set for 9:00 a.m.

SEKHON VS. HUTT

CASE NUMBER: 26CV-0211420

Tentative Ruling on Special Motion to Strike: Defendant Christopher Hutt moves to strike the Complaint pursuant to CCP § 425.16. The Court cannot reach the merits of the Motion, because it was not timely noticed for today's hearing date. The Proof of Service by mail was filed August 14, 2026. It states the Motion was mailed to Plaintiff on August 13, 2026, which is untimely by 4 days. See CCP § 1005(b), which requires 16 court days' notice, plus 5 calendar days for mailing. Absent a request for a continuance to timely notice the Motion, the Court intends to deny it without prejudice.

Tentative Ruling on Motion for Sanctions: Defendant Christopher Hutt moves for sanctions pursuant to CCP § 128.7. The Court cannot reach the merits of the Motion, because it was not timely noticed for today’s hearing date. The Proof of Service by mail was filed August 14, 2026. It states the Motion was mailed to Plaintiff on August 13, 2026, which is untimely by 4 days. See CCP § 1005(b), which requires 16 court days’ notice, plus 5 calendar days for mailing.

Additionally, a motion made pursuant to CCP § 128.7 requires an additional 21 calendar days’ notice prior to filing. This “safe harbor” provision, set forth in CCP § 128.7(c)(1) provides in relevant part: “A motion for sanctions under this section shall be made separately from other motions or requests and shall describe the specific conduct alleged to violate subdivision (b). Notice of motion shall be served as provided in Section 1010, but shall not be filed with or presented to the court unless, within 21 days after service of the motion, or any other period as the court may prescribe, the challenged paper, claim, defense, contention, allegation, or denial is not withdrawn or appropriately corrected.” There is no evidence in the record that Defendant complied with this requirement prior to filing. Therefore the Motion for Sanctions is **DENIED**. No proposed order was submitted as required by Local Rule 5.17(D). Defendant shall submit the proposed order.

SP CONTRACTING, INC. VS. HOUSTON, ET AL.
CASE NUMBER: 26CVG-00664

Tentative Ruling on Demurrer: Defendants Alex Houston and Desiree Houston demur to Plaintiff’s Second Cause of Action for Common Count – Quantum Meruit, pursuant to CCP § 430.10(e) on the ground that it fails to state facts sufficient to constitute a cause of action. Plaintiff opposes the demurrer.

This action arises out of the construction of a backyard swimming pool. The Complaint alleges that the parties entered into a written Bid Proposal for the construction of a pool on September 27, 2023. It further alleges the parties entered into an Extra Work Order on April 20, 2025. Plaintiff alleges it substantially performed, and that Defendants refused to pay a \$30,903.75 installment payment.

Plaintiff’s Complaint, filed April 1, 2026, alleges two causes of action: 1) Breach of Contract, and 2) Common Count – Quantum Meruit (Reasonable Value of Work, Labor, and Materials). On July 29, 2026, Plaintiff dismissed the first cause of action for breach of contract. Only the second cause of action for quantum meruit remains.

“‘Quantum meruit refers to the well-established principle that “the law implies a promise to pay for services performed under circumstances disclosing that they were not gratuitously rendered.” [Citation.] To recover in quantum meruit, a party need not prove the existence of a contract [citations], but it must show the circumstances were such that “the services were rendered under some understanding or expectation of both parties that compensation therefor was to be made.”’ [Citation.]” (*Miller v. Campbell, Warburton, Fitzsimmons, Smith, Mendel & Pastore* (2008) 162 Cal.App.4th 1331, 1344.) “The underlying idea behind quantum meruit is the law’s distaste for unjust enrichment. If one has received a benefit which one may not justly retain, one should ‘restore the aggrieved party to his [or her] former position by return of the thing or its equivalent in money.’ [Citation.]” *E. J. Franks Construction, Inc. v. Sahota* (2014) 226 Cal.App.4th 1123, 1127-1128.